

Smt. Sukanti Chouhan vs Ravidhar Dehari on 11 February, 2022

Author: Rajani Dubey

Bench: Rajani Dubey

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

Judgment reserved on : 15/12/2021

Judgment delivered on: 11/02/2022

FAM No. 71 of 2018

Smt. Sukanti Chouhan W/o Ravi Dehari Aged About 30 Years
(Daughter Of Palu Ram Chouhan) R/o Village Sahaspuri, P.S.
Kotara Road, Tahsil And District Raigarh, Chhattisgarh.

---- Appellant

Versus

Ravidhar Dehari S/o Chandramani Dehari Aged About 35
Years Occupation Constable, R/o Village Nadigaon, Tahsil
Baramkela, P.S. Sariya, District Raigarh, At Present Police Line
Urdana, Tahsil And District Raigarh, Chhattisgarh.

---- Respondent

For Appellant
For Respondents

: Mr. A. D. Kuldeep, Adv.
: Mr. Chandresh Shrivastava, Adv

DB : Hon'ble Shri Justice Goutam Bhaduri, J.

Hon'ble Smt. Justice Rajani Dubey, J.

C A V Order Per: Hon'ble Smt. Justice Rajani Dubey, J.

11 /02/2022

1. The appellant/wife has filed this appeal under Section 19(1) of the Family Court Act against the judgment and decree dated 27.01.2018 passed by the Family Court Raigarh, in Civil Suit No. 137-A/2016 whereby the learned Family Court dissolved the marriage dated 07.07.2010 of the parties.

2. Brief facts of the case are that both appellant and respondent are Hindu and are governed under Mitakshara Law. Their marriage was solemnized on 07.07.2010. After 4-5 months of marriage, appellant/wife voluntarily left the house of respondent/husband on the ground that she did not like the husband as well as his job. She started living in her parental house and harassing husband/respondent mentally by filing the application of maintenance against him.

Husband/Respondent went many times to take her back but the appellant/wife is not ready to come back to the matrimonial house. The respondent/husband also gathered the social meeting but appellant/wife refused to live with him and demanded the dissolution of marriage and, thereafter, appellant/wife filed an application under Section 13 of the Hindu Marriage Act before the Family Court Raigarh.

3. In reply, appellant/wife denied all the allegations made against her and stated in her written statement that plaintiff/husband used to demand dowry from her and also left her in her parental house. The husband used to come to her parental house, abuse and assault her and also make a false allegation that she has illicit relationship with the friend of husband, therefore, the appellant/wife is living with her parents.

4. After appreciating the oral and documentary evidence, learned trial Court vide its order dated 27.01.2018 allowed the suit of plaintiff and dissolved the marriage of the plaintiff and defendant. Hence, this appeal filed by the appellant/wife.

5. Learned counsel for the appellant submits that the impugned order is illegal, perverse and contrary to law, therefore, it is liable to be set-aside. It is next contended that the learned Family Court ought not to have relied upon the testimony of respondent and come to the conclusion that the appellant has been independently living for the last 10 years. The learned Family Court has ignored the statement made by the wife in which she has categorically stated that she was being harassed by the respondent on account of insufficient dowry. Only on the basis of the fact that no independent witness was examined, learned Family Court did not consider the reply filed by the appellant. Thus, it is clear case where the learned Family Court did not follow the principle of natural justice, therefore, the order passed by the learned Family Court deserves to be set-aside.

6. Learned counsel for the respondent supported the impugned order of the trial Court and in support of his argument learned counsel for the appellant placed reliance in this Court's order dated 16.02.2016 in Jasveer Kaur Vs. Bikram Singh passed in FA (M) No. 116/2014 and in Som Kumar Bahidar Vs. Smt. Jyoti passed in FAM No. 102/2012.

7. Heard counsel for both the parties and perused the material available on record.

8. It is not disputed before the learned trial Court that after 3-4 month of marriage, appellant/wife left the house of the respondent. Appellant Sukanti Chouhan stated in her evidence that after marriage, the respondent and his family used to commit mar-peat on her and in December 2010, respondent sent her to her parental house. In her cross-examination she stated that:-

;g dguk lgh gS fd eSa fnlEcj 2010 ds ckn oknh ds ?kj dHkh ugha xbZ gWwA ;g dguk
lgh gS fd eSaus vius ifr ds f[kykQ ngst izrkMuk ;g ekjihV ds laca/k esa dksbZ fjiksZV
Hkh ugha dh vkSj dksbZ f'kd;k; Hkh ugha dhA

9. Basant Kumar (PW-1) has stated in his evidence that"

jfo nsgjh vkSj lqdkfUr pkSgku ds fookn ds laca/k esa gekjs lekt dh cSBd fnukad 15-01-2012 dks veyfMgk uokikjk esa gqbZ FkhA cSBd esa gekjs lekt ds cgqr ls ykx mifLFkr FksA gekjs dk;Zdkfj.kh ds lnL; Hkh mifLFkr FksA jfo nsgjh vkSj lqdkfUr vkSj mlds ifjokj okys Hkh mifLFkr FksA cSBd esa lqdkfUr us dgk Fkk fd] og jfo/kj nsgjh ds lkFk ugha jguk pkgrhA Appellant as well as his father stated in their evidence that in 2016 respondent came to her house and they lived as husband and wife for a period of one month.

10. Sukanti Chouhan (DW-1) stated in para 7 of her evidence that:

tc eSa jk;x< esa jg jgh Fkh] rc oknh essjs ikl vk;k Fkka lkFk ys tkmaxk dgdj 'kjhfd laca/k cukrk Fkka lu 2016 esa oknh essjs lkFk jgdj yxHkx ,d ekg rd nkEiR; thou Hkh fcrk;k gSA But in her cross-examination she admitted that:

;g dguk lgh gS fd eSa tks esjs ifr ds lkFk lu 2016 esa ,d ekg rc izf'k{k.k ds nkSjku esjs lkFk jgus dh ckr dg jgh gwa mlds laca/k esa eSaus dksbZ nLrkost is'k ugha dh gSA

11. Palu Ram (DW-2), father of the appellant, stated in para 6 that:

esjh yMdh tc esjs lkFk jg jgh Fkh rc ,d ekg ds fy, lu 201+6 dks jfo gekjs ?kj vkdj jgk Fkka But this fact was denied by the respondent.

12. In Bipinchandra Jaisinghbai Shah Vs. Prabhavati reported in AIR 1957 SC 176 Hon'ble Supreme Court held in para 10 that:-

"(10) What is desertion? "Rayden on Divorce" which is a standard work on the subject at p. 128 (6 th Edn.) has summarised the case-law on the subject in these terms:-

"Desertion is the separation of one spouse from the other, with an intention on the part of the deserting spouse of bringing cohabitation permanently to an end without reasonable cause and without the consent of the other spouse; but the physical act of departure by one spouse does not necessarily make that spouse the deserting party".

The legal position has been admirably summarised in paras 453 and 454 at pp. 241 to 243 of Halsbury's Laws of England (3rd Edn.), Vol. 12, in the following words:-

"In its essence desertion means the intentional permanent forsaking and abandonment of one spouse by the other without that other's consent and without reasonable cause. it is a total repudiation of the obligations of marriage. In view of the large variety of circumstances and of modes of life involved, the Court has discouraged attempts at defining desertion, there being no general principle applicable to all cases.

Desertion is not the withdrawal from a place but from a stage of things, for what the law seeks to enforce is the recognition and discharge of the common obligations of the married state; the state of things may usually be termed, for short, 'the home'. There can be desertion without previous cohabitation by the parties, or without the marriage having been consummated.

The person who actually withdraws from cohabitation is not necessarily the deserting party. The fact that a husband makes an allowance to a wife whom he has abandoned is no answer to a charge of desertion.

The offence of desertion is a course of conduct which exists independently of its duration, but as a ground for divorce it must exist for a period of at least three years immediately preceding the presentation of the petition or where the offence appears as a cross-charge, of the answer. Desertion as a ground of divorce differs from the statutory grounds of adultery and cruelty in that the offence founding the cause of action of desertion is not complete, but is inchoate, until the suit is constituted. Desertion is a continuing offence".

13. In this Court's order in Som Kumar (Supra) this Court held that:

"If a spouse abandons the other spouse in a state of temporary passion, for example, anger or disgust, without intending permanently to cease cohabitation, it will not amount to desertion. For the offence of desertion, so far as the deserting spouse is concerned, two essential conditions must be there, namely, (1) the factum of separation, and (2) the intention to bring cohabitation permanently to an end (animus deserendi). Similarly, two elements are essential so far as the deserted spouse is concerned:

(1) the absence of consent, and (2) absence of conduct giving reasonable cause to the spouse leaving the matrimonial home to form the necessary intention aforesaid. The petition for divorce bears the burden of proving those elements in the two spouses respectively."

14. In this case, it is admitted by the appellant that she has not been living with her husband since 2010 and since then, no steps have been taken by her to return to her matrimonial home. Learned trial Court also finds that appellant/wife deserted her spouse before two years of filing of the suit and passed a decree of divorce in favour of respondent/husband. The conduct of wife clearly shows that she has no desire to live with the husband. She left the house of respondent in 2010 and the date of filing of the petition is 27.08.2016 which is the period more than the statutory period of two years.

15. Thus, in view of the above findings, this Court finds that the impugned order and decree passed by the learned Family Court is based on proper appreciation of oral and documentary evidence and need not be corrected. Hence, the appeal is liable to be and is hereby dismissed.

Sd/-
(Goutam Bhaduri)
Judge

Sd/-
(Rajani Dubey)
Judge

V/-